CRIMINALIZING REPORTING

Hong Kong SAR v. Bao Choy Yuk Ling

9 October 2026

CASE FOLLOW-UP REPORT

Procedural developments and verified outcomes

Independent research based on user-supplied TrialWatch materials

ABOUT THIS UPDATE

This independent research update follows the user-supplied TrialWatch material. It is not issued by the Clooney Foundation for Justice, TrialWatch, or the original authors. The earlier report supplies the historical baseline; later developments are supported by the sources cited here.

Jurisdiction	Hong Kong SAR, China
Original report	July 2021
Dated update covered	6 March 2026
Research cutoff	9 October 2026
Historical assessment	TrialWatch grade C (original report only)

SCOPE AND METHOD

Research considered public court records, enacted legislation, lawyers and subjects, press-freedom organizations, United Nations materials and attributable reporting available through 9 October 2026. Publication dates and event dates are distinguished. Where judgments or current custody records could not be obtained, the conclusion is expressly qualified. No direct interviews or new trial monitoring were conducted for this update.

An acquittal, quashing order, pardon, sentence completion, bail decision and custody transfer have different legal effects. A reported intention to litigate is separated from an actual filing. Unresolved questions are listed below. Historical TrialWatch grades retain their original attribution; this update does not assign a new grade.

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EXECUTIVE SUMMARY

LATEST VERIFIED POSITION

Both convictions quashed by Court of Final Appeal in June 2023

Latest related judicial event is a separate March 2026 judicial review of the revised vehicle-records policy. It did not reinstate Choy's convictions. Her criminal appeal was allowed on 5 June 2023 in FACC 2/2023, [2023] HKCFA 12.

On 5 June 2023, the Court of Final Appeal unanimously quashed both convictions and set aside Choy's sentence: a judicial reversal, not a pardon. [3]

The latest related judgment located, dated 6 March 2026, dismissed the Hong Kong Journalists Association's challenge to a revised vehicle-records access policy. That separate administrative case does not reverse Choy's successful criminal appeal. [5] [6]

3. Hong Kong Court of Final Appeal, 5 June 2023. HKSAR v. Choy Yuk Ling, FACC 2/2023, [2023] H...

5. Hong Kong Court of First Instance, 6 March 2026. Hong Kong Journalists Association v. Commissi...

6. Hong Kong Department of Justice, 6 March 2026. Summary of HCAL 559/2024: Hong Kong Journalis...

BACKGROUND AND PROCEDURAL HISTORY

The July 2021 report concerned Choy's use of vehicle-registration records for an RTHK documentary investigating the 21 July 2019 Yuen Long attacks and the police response. The application form required a declared purpose; she selected the catch-all category for other traffic-and-transport-related matters. Authorities subsequently treated that declaration as false. She was arrested in November 2020, convicted on two false-statement charges in 2021 and fined HK$6,000. Her appeal was pending at the report's publication. [1]

The original expert assigned a C. TrialWatch considered courtroom procedures generally fair, while identifying concerns about the legal clarity of the form and offence and the apparent selective targeting of public-interest journalism. Those concerns were an assessment of the monitored trial, not a prediction of the later appellate result. The follow-up therefore distinguishes the original grading exercise from the binding interpretation subsequently supplied by the Court of Final Appeal. [1]

KEY PROCEDURAL DATES

July 2021	Original report published while Choy's appeal remained pending. [1]
7 November 2022	Court of First Instance dismissed her initial criminal appeal. [2]
5 June 2023	Court of Final Appeal allowed appeal, quashed both convictions and set sentence aside. [3]
8 January 2024	Revised vehicle-records application arrangements implemented, as recorded in the later official judgment summary. [6]
25 January 2024	Transport Department explained specified purposes and exceptional public-interest application route. [4]
6 March 2026	Court of First Instance dismissed HKJA's separate challenge to the revised policy. [5]

1. User-supplied original report, July 2021.
2. Hong Kong Court of First Instance, 7 November 2022. HKSAR v. Choy Yuk Ling, HCMA 236/2021, [2022]...
3. Hong Kong Court of Final Appeal, 5 June 2023. HKSAR v. Choy Yuk Ling, FACC 2/2023, [2023] H...
4. Hong Kong Government / Transpor..., 25 January 2024. Transport Department statement on vehicle reg...
5. Hong Kong Court of First Instance, 6 March 2026. Hong Kong Journalists Association v. Commissi...
6. Hong Kong Department of Justice, 6 March 2026. Summary of HCAL 559/2024: Hong Kong Journalis...

SUBSEQUENT DEVELOPMENTS

The Court of First Instance initially dismissed the criminal appeal on 7 November 2022 in HCMA 236/2021, [2022] HKCFI 3343. It accepted a narrower relationship between the permitted search purpose and road-traffic use. This intermediate result matters because the eventual appellate success was not the first response to the conviction. [2]

In FACC 2/2023, [2023] HKCFA 12, the court held that the catch-all purpose encompassed bona fide journalism. Even on the narrower interpretation, the ambiguous form did not establish guilty knowledge as the only reasonable inference. Materiality to the Commissioner's function did not itself prove falsity or knowledge. The operative order quashed both convictions and set aside the sentence. [3]

The Transport Department's January 2024 statement described a redesigned application regime with specified purposes and written applications for exceptional public-interest uses. It presented the arrangements as balancing privacy and access, and as consistent with the earlier judgment. That is the government's stated rationale, not a determination that every later journalistic request must be approved. [4]

The later judicial review, HCAL 559/2024, [2026] HKCFI 917, concerned HKJA and the Commissioner for Transport, not new false-statement charges against Choy. On 6 March 2026 the court dismissed the challenge. It identified errors in guidance and declarations requiring correction but did not grant the review. The official Department of Justice summary separately records the policy's January 2024 implementation and the review's disposition. [5] [6]

LEGAL AND PROCEDURAL ASSESSMENT

The following assessment draws inferences from the cited record. It does not represent a new court finding or TrialWatch grade.

the criminal judgment addressed proof of the particular offence on the old form, whereas the later litigation examined the lawfulness of a different access policy. Conflating the two would falsely suggest either that the 2023 result created unrestricted registry access or that the 2026 judgment restored Choy's convictions. [3] [5]

the appellate reasoning addresses the original clarity concern without endorsing every TrialWatch assessment, particularly prosecutorial motive. The court's reasons and order, not the historical grade, determine the criminal disposition. [1] [3]

1. User-supplied original report, July 2021.
2. Hong Kong Court of First Instance, 7 November 2022. HKSAR v. Choy Yuk Ling, HCMA 236/2021, [2022]...
3. Hong Kong Court of Final Appeal, 5 June 2023. HKSAR v. Choy Yuk Ling, FACC 2/2023, [2023] H...
4. Hong Kong Government / Transpor..., 25 January 2024. Transport Department statement on vehicle reg...
5. Hong Kong Court of First Instance, 6 March 2026. Hong Kong Journalists Association v. Commissi...
6. Hong Kong Department of Justice, 6 March 2026. Summary of HCAL 559/2024: Hong Kong Journalis...

CONCLUSION AND OUTSTANDING RECORDS

The original prosecution ended in the verified quashing of both convictions. Continuing disputes over journalists' registry access are important follow-up context, but remain a separate legal controversy with a separate judgment and unresolved questions about implementation.

RECORDS NOT VERIFIED

1. Whether HKJA appealed the March 2026 judicial-review judgment and any later disposition before 9 October.

2. Implementation and timing of the corrections to guidance and declarations identified by the 2026 court.

3. Any verified fine refund, compensation or other personal remedial order beyond the CFA's quashing order.

4. Practical outcomes of Choy's or other journalists' applications under the revised policy; no unrestricted-access conclusion is supported.

Failure to locate an update leaves a gap in the available evidence; it does not establish that no later proceeding or change occurred. Any present-status claim should be read with the dated scope stated in the executive summary.

SOURCES AND REFERENCES

Numbered references correspond to superscript citations and page notes. Web sources were consulted for this research through 9 October 2026. Original reports are local user-supplied files. Each link opens the cited source.

1. **Original user-supplied report on Hong Kong SAR v. Bao Choy Yuk Ling**
TrialWatch / original report authors. July 2021.
Local PDF: hong-kong-special-administrative-region-v-bao-choy-yuk-ling.pdf
Coverage: Historical case baseline and original assessment

2. **HKSAR v. Choy Yuk Ling, HCMA 236/2021, [2022] HKCFI 3343**
Hong Kong Court of First Instance; judgment reproduced by BabelCite. 7 November 2022.
Read source at babelcite.com
Coverage: Initial criminal appeal dismissed; narrower permitted-purpose interpretation

3. **HKSAR v. Choy Yuk Ling, FACC 2/2023, [2023] HKCFA 12**
Hong Kong Court of Final Appeal; judgment reproduced by BabelCite. 5 June 2023.
Read source at babelcite.com
Coverage: Paragraphs 62, 73-75 and 78: purpose, knowledge, materiality and quashing order

4. **Transport Department statement on vehicle registration particulars applications**
Hong Kong Government / Transport Department. 25 January 2024.
Read source at www.info.gov.hk
Coverage: Specified-purpose scheme; exceptional written public-interest route; government's rationale

5. **Hong Kong Journalists Association v. Commissioner for Transport, HCAL 559/2024, [2026] HKCFI 917**
Hong Kong Court of First Instance; official copy hosted by Privacy Commissioner. 6 March 2026.
Read source at www.pcpd.org.hk
Coverage: Separate policy review dismissed; paragraphs 248-250; corrections identified

6. **Summary of HCAL 559/2024: Hong Kong Journalists Association v. Commissioner for Transport**
Hong Kong Department of Justice. 6 March 2026.
Read source at www.doj.gov.hk
Coverage: Revised policy implemented 8 January 2024; March 2026 review result